

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-23

Marine Transport Logistics, Inc. v. CMA CGM SA

RESPONDENT’S REPLY TO COMPLAINANT’S CROSS MOTION TO COMPEL

CMA CGM SA (“Respondent” or “CMA”), through its undersigned counsel, hereby responds to Marine Transport Logistics, Inc.’s (“Complainant” or “MTL”) December 27, 2023 Cross Motion to Compel.¹ As we demonstrate in detail below, Complainant’s Motion is deficient in at least three respects:

- The issues raised by the Complainant’s Motion are moot, as grant of the requested relief within the permissible scope of discovery would not result in the production of any new documents.
- Complainant’s Motion is procedurally defective because it fails to comply with the requirements of 46 C.F.R. § 502.150 both in form and in substance, as there is no certificate that MTL conferred or made any attempts in good faith to resolve the matter with CMA without a motion, and indeed MTL made no effort to confer.
- Complainant’s Motion is substantively inadequate, as it makes false claims as to why CMA objected to production and provides nothing but its own *ipse dixit* regarding the relevance of the requested documents allegedly withheld by CMA.

¹ It is unclear why MTL styled its motion as a “cross-motion,” because unlike cross-motions for summary judgment, the discovery motions filed by CMA and MTL are entirely independent, and granting relief as to one has no effect on the other. We will refer to MTL’s motion as Complainant’s Motion.

BACKGROUND

On March 9, 2023, CMA served its original responses to MTL’s February 6, 2023 initial requests for production of documents. CMA objected to the production of documents on various grounds, including, *inter alia*, the requirement of French criminal law that CMA produce documents only in accordance with the procedures established by the Hague Convention. On March 28, 2023, the Presiding Officer declined to make use of the Hague procedures, and the Commission affirmed this decision on October 30, 2023. There, the Commission held that the Presiding Officer did not abuse her discretion in rejecting wholesale objections to production of documents requested by MTL but emphasized that CMA: (i) “remains free to make objections as to specific requests or documents, on foreign law or other grounds”; and (ii) could still object “to specific requests or documents as beyond the reach of permissible discovery under FMC rules.” *Id.* at 2, 8-9. *See also id.* at 9 (“CMA remains free to invoke the relevant provisions [of the FMC’s discovery rules], like any other party before the Commission”). The Commission also repeatedly noted that MTL’s request was effectively limited to documents physically located in the U.S. *See id.* at 4 (“MTL did note that its document requests were really directed at materials held by CMA’s U.S. subsidiary, CCA. *Id.*”); 8 (As MTL notes, its discovery requests are directed at documents maintained by said subsidiary).

Although CMA disagrees with the Commission’s decision, it had no reasonable option at that point other than to produce documents under the compulsion of the Commission’s decision, which it did.

Indeed, notwithstanding this and other objections, CMA has produced myriad documents responsive to Complainant’s discovery requests. These documents include, but are

not limited to, commercial documents (Bills of Lading, invoices, etc.) and communications concerning the Subject Shipments/Subject Containers identified in the Verified Amended Complaint, as well as invoices and other documents concerning demurrage, detention and storage charges for the Subject Containers.²

ARGUMENT

1. Complainant's Motion is Moot.

CMA's productions, outlined above, reflected a thorough review of documents held by likely custodians in the United States, and CMA produced such documents in response to MTL Requests 1-5. As detailed in Part 3, below, Requests 6 and 7 are extremely broad, extending well beyond the scope of permissible discovery, and MTL has not even attempted to demonstrate their import or relevance. If Requests 6 and 7 are limited to documents within the scope of discovery afforded by the FMC Rules, any further production is unlikely to add documents beyond those already produced. Accordingly, Complainant's Motion is effectively moot.

2. Complainant's Motion Fails to Comply with 46 C.F.R. § 502.150(a) in Both Form and Substance.

Under the FMC's Rules (46 C.F.R. 502.150(a)(2)), a motion to compel must include:

“(i) A certification that the moving party has conferred in good faith or attempted to confer with the party failing to make initial disclosure or respond to discovery requests as provided in this subpart in an effort to obtain compliance without the necessity of a motion;

(ii) A copy of the discovery requests that have not been answered or for which evasive or incomplete responses have been given. If the motion is limited to specific discovery

² The volume of documents produced by CMA dwarfs that of MTL's meagre production, which is the subject of Respondent's own December 22, 2023 Motion to Compel. To illustrate, CMA has already produced 2,147 pages, compared to the 221 pages produced by MTL.

requests, only those requests are to be included;

(iii) If a disclosure has been made or an answer or response has been given, a copy of the disclosure, answer, or response in its entirety;

(iv) A copy of the certificate of service that accompanied the discovery request; and

(v) A request for relief and supporting argument, if any.”

Complainant’s Motion fails to meet requirements (i), (iii) and (v). For present purposes, however, we focus on requirement (i) – conferral and certification thereof. MTL’s Motion contains **no** such certificate and could be denied on those grounds alone. But even if the Presiding Officer is inclined to give MTL’s experienced counsel some leeway on the ground that this is a technical mandate that does not go to the substance, Complainant’s Motion should still be denied for MTL’s ***failure to confer in fact***. As demonstrated in Respondent’s December 22, 2023 Motion to Compel (*see especially* Attachments I and J), Respondent conferred extensively with MTL over each and every deficiency asserted by Respondent (unfortunately, to little effect). MTL, by contrast, made absolutely no attempt to confer with CMA, beyond a brief statement that counsel intended to file a counter motion to compel during a December 22, 2023 telephone conversation regarding MTL’s deficiencies.³ Had MTL actually conferred with CMA, we believe that the dispute would almost certainly have been eliminated, or at the very least substantially reduced. FMC Rule 150 is designed to promote judicial efficiency, and Complainant’s flouting of this Rule achieves the exact opposite. Accordingly, Complainant’s Motion should be denied.

³ Complainant has produced no letters, no email exchanges, no records of verbal conversations, or anything else regarding any deficiencies in Respondent’s responses following Respondent’s November 30, 2023 production, because *no such conversations occurred*.

3. Complainant's Motion Fails on the Merits.

Complainant has identified Respondent's responses to Requests for Production of Documents 6 and 7 as ostensibly deficient. These requests, and Respondent's responses, state:

6. Copies of all formal and informal complaints from other clients of CMA concerning demurrage, detention, storage, and container roll-over charges for years 2020 to 2023, and all documents concerning the resolution of such complaints. The documents produced should also include evidence as to what ultimately happened with these containers that were the subject of the complaints; for example, did they reach their final destination, were abandoned, or disposed by other means.

RESPONSE: Respondent objects to this RFD as irrelevant to any claims or defenses that have arisen or may arise in this proceeding. Further, this request for documents is overly broad and unduly burdensome with respect to its demand for "copies of all formal and informal complaints from other clients of CMA" over a four-year period. Respondent is withholding a response to this RFD based on these general and specific objections.

7. Any documents that show the revenue generated by CMA from demurrage/detention/storage charges between the years 2018 – 2023.

RESPONSE: Respondent objects to this RFD as irrelevant to any claims or defenses that have arisen or may arise in this proceeding. Further, this request for documents is unduly burdensome. Respondent is withholding a response to this RFD based on these general and specific objections.

In its Motion, Complainant references an entirely fictitious conversation between counsel in which "Counsel for CMA as one of the objections again objected based on the Hague Convention [sic]." Complainant's Motion at 2. This is simply and utterly false. Once the Commission ruled on the matter, CMA timely produced non-privileged, responsive documents. And as demonstrated unequivocally above, Respondent's objections to Requests 6 and 7 made no reference to the Hague Convention, even though, as quoted above, the Commission authorized CMA to raise "foreign law" objections to specific documents. Rather,

Respondent objected on grounds specifically delineated by the Commission as appropriate (again as quoted above).⁴

Further, MTL fails to provide any support for its conclusory claim that the documents it seeks are relevant to the matter. It states merely: “It is respectfully being submitted that the information sought in these requests is relevant to the main allegations in this case” Complainant’s Motion at 2. It does not explain what types of documents it seeks, for what purpose it might use them or why they are relevant to anything in the case. In the absence of any such explanation from MTL, the only reasonable conclusion to be drawn is that these requests amount to an impermissible fishing expedition to peek under the hood at CMA’s proprietary and confidential business information and have no legitimate purpose for this litigation.

Respondent has already produced the non-privileged responsive documents regarding the shipments at issue, so requests 6 and 7, seeking information regarding an unlimited number of unidentified other shippers, are flatly inconsistent with the Presiding Officer’s recent issuance of a protective order prohibiting broad discovery regarding shippers and shipments not involved in the case. *Bed Bath & Beyond Inc. V. Orient Overseas Container Line Limited*, Docket No. 23-02 (Order on . . . Respondents’ Motion For Entry Of A Protective Order, issued Sept. 28, 2023).

⁴ Remarkably, Complainant’s Motion to Compel specifically refers to this holding by the Commission, then argues to the contrary.

CONCLUSION

In sum, as demonstrated above, Complainant's Motion is deficient for at least three reasons, and therefore should be denied.

DATED: December 29, 2023

Respectfully submitted,

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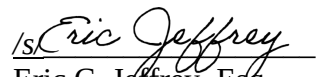
ATTORNEYS FOR RESPONDENT

CERTIFICATE OF SERVICE

I hereby certify that on this 29th day of December, 2023, a true and correct copy of the foregoing *Respondent's Reply to Complainant's Cross Motion to Compel* was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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